



Rise. Register. Grow.

In business, leaders often talk about a "VUCA" world — one defined by Volatility, Uncertainty, Complexity, and Ambiguity (Bennett & Lemoine, 2014). Prices shift overnight, regulations change, and the road to formalising a small food business can feel impossible to predict. That is exactly the world our traders are operating in. So in this VUCA world, we are here to help you VUKA ;-)

Journey 10: What's Your Next Move?

This is **Journey 10** of the VUKA curriculum: every journey a food trader needs, from checking whether you're ready to grow, right through to scaling into a bigger business, in one consistent, scenario-driven format.

Each lesson takes 3–7 minutes: a real scenario, a quick explanation, one practical tip, a quick challenge, and a badge.

What's Inside:

 Journey 10: What's Your Next Move?.....	2
 Should You Still Be a Sole Proprietor?.....	2
 Hiring Your First Team Member, Legally.....	2
 Getting Retail-Ready: What Big Buyers Actually Check.....	2
 The Packaging Rule Growing Businesses Miss.....	3
 Protecting the Name You Built.....	3
 Doors That Open With B-BBEE and a Tax Clearance.....	3
 Selling Online? Know Your Customer Data Duties.....	4
 Growth Moves Most Food Businesses Overlook.....	4
Sources for Fact-Checking: Legislation & Regulation.....	4
Sources & Further Reading: Business Practice, Marketing & Financial Literacy.....	5
Sources & Further Reading: The VUCA Concept.....	5



Journey 10: What's Your Next Move?

Scaling Your Business

"You did it. You're registered, permitted, and trading legally. So why does it suddenly feel like there's a whole new set of rules?"

Getting official was step one. Staying legal while you grow, taking on staff, packaging your product, chasing bigger buyers, going online, is step two, and it catches even experienced business owners off guard. This journey walks through what changes once you start scaling, the legal groundwork most people miss, and a few creative ways to grow that don't always involve renting a second shop.

Should You Still Be a Sole Proprietor?

"You've been trading under your CIPC-registered name for a year. Is that still the right structure for what's coming next?"

Most people start as a sole proprietor or a simple private company (Pty Ltd), and that's fine for getting going. But as you grow, take on staff, sign bigger contracts, or bring in a business partner, your structure matters more. A private company (Pty Ltd) keeps your personal assets more clearly separate from business risk than a sole proprietorship does, and it's usually what bigger clients, banks, and investors expect to see before they'll sign a serious deal (Companies Act 71 of 2008).

 **QUICK TIP** You don't have to deregister and start over. You can convert or restructure through CIPC as you grow, ask them directly what changing your structure involves.

 **QUICK CHALLENGE** Look up whether your current structure is a sole proprietorship, a Pty Ltd, or something else, and write down one reason it might need to change in the next year.

Complete this and earn:  "Structure Check" badge

Hiring Your First Team Member, Legally

"You just hired your first helper. Besides paying them, what does the law actually require of you now?"

The moment you pay someone to work for you, even part-time or family, you become an employer in the eyes of the law. You must register for UIF (Unemployment Insurance Fund) with the Department of Employment and Labour within a few days of hiring (Unemployment Insurance Act 63 of 2001; Unemployment Insurance Contributions Act 4 of 2002), and register for COIDA (Compensation for Occupational Injuries and Diseases) too, which covers your employee if they're hurt on the job (COIDA, Act 130 of 1993). Both apply even if you only have one employee. The Basic Conditions of Employment Act (Act 75 of 1997) also sets minimum rules on things like working hours, leave, and pay slips.

 **QUICK TIP** Register for UIF and COIDA together when you hire your first person, most employers only think of one and get caught out by the other.

 **QUICK CHALLENGE** If you already have staff, check whether you're registered for both UIF and COIDA. If you don't yet, write down the date you plan to hire and register by.

Complete this and earn:  "Fair Employer" badge

Getting Retail-Ready: What Big Buyers Actually Check

"A retail buyer says they're interested, then asks for your food safety certification. Do you have anything beyond your CoA?"

Your municipal Certificate of Acceptability gets you trading legally, but big retailers and formal distributors often want more before they'll list you: proof of consistent food safety practice, sometimes a recognised system like HACCP, and NRCS approval if your product is canned, smoked, or vacuum-packed. Many also run their own supplier audits. None of this happens overnight, so it's worth finding out what a specific buyer needs before you approach them, rather than after.



 **QUICK TIP** Ask a potential buyer for their supplier checklist before your first meeting. It tells you exactly what to fix first, instead of guessing.

 **QUICK CHALLENGE** Pick one retailer or distributor you'd like to supply, and find out what their supplier requirements are.

Complete this and earn:  **"Retail Ready" badge**

The Packaging Rule Growing Businesses Miss

"You've started packaging your sauce in your own branded bottles. Did you know that makes you legally responsible for what happens to that bottle after it's thrown away?"

Once you're a producer or brand owner putting packaging onto the market in any real volume, South Africa's Extended Producer Responsibility (EPR) regulations under the National Environmental Management: Waste Act may apply to you (Waste Act 59 of 2008; EPR Regulations, GN R.1184 of 2020). In practice, this means registering with an approved Producer Responsibility Organisation (PRO) and contributing toward the collection and recycling of your packaging. Very small operations are often exempt, but the thresholds are lower than most people expect, so it's worth checking rather than assuming you're too small.

 **QUICK TIP** Search for a Producer Responsibility Organisation in your packaging category (plastics, paper, glass, metal) and ask them directly whether your volumes require you to register.

 **QUICK CHALLENGE** Look at your current packaging and note what material it's made from, then check whether an EPR scheme applies to that material.

Complete this and earn:  **"Packaging Aware" badge**

TMProtecting the Name You Built

"Someone in another town starts using a name almost identical to yours. Can you actually stop them?"

Registering your business with CIPC protects your company's legal identity (Companies Act 71 of 2008), but it doesn't automatically protect your brand name, logo, or recipe name from being copied by someone else. For that, you need a trademark, registered separately through CIPC's Trade Marks division (Companies Act 71 of 2008). If your business has a name, look, or product people already recognise, a trademark is what stops a competitor from trading on your reputation.

 **QUICK TIP** You can search the CIPC trade marks register yourself before you apply, to check your name isn't already taken.

 **QUICK CHALLENGE** Search cipc.co.za to see whether your business name or logo is already trademarked by someone else, or by you.

Complete this and earn: **TM** **"Brand Protector" badge**

Doors That Open With B-BBEE and a Tax Clearance

"A corporate client wants to place a big order, but first they ask for your B-BBEE certificate and a tax clearance. Do you have either?"

Many corporates and all government departments are required to buy from businesses with good Broad-Based Black Economic Empowerment (B-BBEE) standing (B-BBEE Act 53 of 2003), and from suppliers who are tax compliant. If your annual turnover is below the exempted micro-enterprise (EME) threshold, you likely qualify for an automatic B-BBEE certificate, sometimes just a sworn affidavit, at no cost. A SARS Tax Compliance Status (what used to be called a tax clearance certificate) is free to obtain online once your tax affairs are in order (SARS), and both documents are often the first thing a bigger buyer or a government tender asks for.



 **QUICK TIP** Get your SARS Tax Compliance Status and B-BBEE affidavit sorted before you need them, not after a big opportunity is already on the table.

 **QUICK CHALLENGE** Check your SARS eFiling profile for your current Tax Compliance Status, and look up whether your turnover qualifies you for an EME B-BBEE affidavit.

Complete this and earn:  **"Deal Ready" badge**

Selling Online? Know Your Customer Data Duties

"You start taking orders and payments through WhatsApp and a simple website. Did you know you now have legal duties around your customers' personal information?"

The moment you collect customer details like names, phone numbers, addresses, or payment information, even informally, the Protection of Personal Information Act (POPIA, Act 4 of 2013) applies to you. You don't need complicated systems, but you do need to keep that information secure, only use it for what you told the customer you'd use it for, and be able to delete it if they ask. The Consumer Protection Act (Act 68 of 2008) also gives online customers rights around refunds, delivery, and clear pricing that a cash-only stall doesn't usually have to think about.

 **QUICK TIP** Write one short line customers see when they order, saying what you'll use their details for. That alone puts you well ahead of most small businesses.

 **QUICK CHALLENGE** List every piece of customer information your business currently collects, and check where and how securely you're storing it.

Complete this and earn:  **"Data Responsible" badge**

Growth Moves Most Food Businesses Overlook

"Everyone scales by opening a second stall. What if that's not actually your best option?"

Renting a second location isn't the only way to grow, and it's often the most expensive. Co-packing lets another registered, NRCS-approved facility manufacture your product at scale under your brand, so you can supply retailers without building your own factory. A cloud kitchen, cooking only for delivery from a shared commercial kitchen, cuts your rent and staffing risk compared to a second storefront. Subscription boxes and pre-order models let you produce against confirmed demand instead of guessing. And since the launch of the African Continental Free Trade Area (AfCFTA), some South African food producers are exploring exporting into other African markets, though this brings its own permit and standards requirements worth researching properly before you commit.

 **QUICK TIP** Before spending on a second physical location, cost out co-packing or a shared cloud kitchen instead. The legal and financial commitment is usually much smaller.

 **QUICK CHALLENGE** Pick one growth option from this lesson you hadn't seriously considered, and write down what you'd need to find out to explore it.

Complete this and earn:  **"Growth Thinker" badge**

Sources for Fact-Checking: Legislation & Regulation

Every legal fact in Journeys 3, 4, and 10 is drawn from current South African legislation and regulator guidance:

- Regulations Governing General Hygiene Requirements for Food Premises (R638 of 2018), under the Foodstuffs, Cosmetics and Disinfectants Act 54 of 1972 — enforced by municipal Environmental Health Departments.
- Regulations Relating to the Labelling and Advertising of Foodstuffs (R146), under the Foodstuffs, Cosmetics and Disinfectants Act 54 of 1972 — Department of Health.
- Businesses Act 71 of 1991 — gov.za.
- Companies Act 71 of 2008 and Companies and Intellectual Property Commission (CIPC) — company registration, business structure conversion, and trade mark registration — cipc.co.za.



- National Regulator for Compulsory Specifications (NRCS), Food and Associated Industries division — canned, smoked, and vacuum-packed products — nrcs.org.za.
- South African Revenue Service (SARS), Small Businesses – Taxpayers, Tax Compliance Status system, and Budget 2026 Frequently Asked Questions (VAT and Turnover Tax threshold changes effective 1 April 2026) — sars.gov.za.
- Unemployment Insurance Act 63 of 2001 and Unemployment Insurance Contributions Act 4 of 2002 — Department of Employment and Labour — labour.gov.za.
- Compensation for Occupational Injuries and Diseases Act 130 of 1993 (COIDA) — Compensation Fund, Department of Employment and Labour — labour.gov.za.
- Basic Conditions of Employment Act 75 of 1997 — Department of Employment and Labour — labour.gov.za.
- National Environmental Management: Waste Act 59 of 2008 and Extended Producer Responsibility (EPR) Regulations (Government Notice R.1184, 2020) — Department of Forestry, Fisheries and the Environment — dffe.gov.za.
- Broad-Based Black Economic Empowerment Act 53 of 2003, and the Codes of Good Practice on B-BBEE (Exempted Micro-Enterprise thresholds) — dtic.gov.za.
- Protection of Personal Information Act 4 of 2013 (POPIA) — Information Regulator South Africa — infoeregulator.org.za.
- Consumer Protection Act 68 of 2008 — online and distance sales provisions — gov.za.
- African Continental Free Trade Area (AfCFTA) — South African implementation guidance — dtic.gov.za.

Note: municipal fees, thresholds, and application processes vary by area and are periodically revised by government and regulators. Verify current requirements directly with the relevant municipality or regulator before publishing final figures in the app.

Sources & Further Reading: Business Practice, Marketing & Financial Literacy

Branding and digital marketing facts in Journeys 6 and 7 draw on the following:

- Cloudfusion (2025). 7 Essential Reasons Why Branding Is Important for Business. cloudfusion.co.za.
- Dandu, R. (2015). What Is Branding and Why Is It Important for Your Business? [brandingmag](http://brandingmag.com).
- Mercer, S. (2026). What to Post When You Have Nothing to Post: 10 Content Ideas for Summerville Businesses. What's Up Summerville.
- Why food photography is important for your food business. candyfoxstudio.com.
- Yolisa Motha (2021). A Guide to Branding a Small Business. [ikhokha](http://ikhokha.com).

Statistics on South African small business communication, time management, professionalism, networking, record-keeping, and banking (Journeys 1, 2, 8, and 9) are drawn from national small business research. Verify current figures against original sources before publishing final numbers in the app.

Growth-readiness, lending-risk, funding, and stock-management facts in Journeys 1, 2, 5, and 9 draw on the following:

- National Debt Advisors (2021). Stay away from unregistered money-lenders. nationaldebtadvisors.co.za.
- Startup Mag (2025). Scaling Signals: Ten Signs Your Small Business Is Ready to Grow. startupmag.co.za; Lula (2025). 5 Signs Your Business is Ready for Growth Capital. lula.co.za.
- RegInsights (2024). Small Business Funding. regenesys.net/reginsights.
- Graduates24 (n.d.). NYDA Grant Programme Small Business Funding in South Africa. graduates24.com.
- Okhantu (2025). SEDFA Funding 2026: Requirements, Amounts & How to Apply. okhantu.co.za.
- Ready Accounting (2026). Inventory management tips for cost savings and efficiency. readyaccounting.co.za.
- Xtraspace (2024). Small Business Inventory Management in SA: 10 Top Tips. xtraspace.co.za.

Sources & Further Reading: The VUCA Concept

The mission statement on the cover page draws on the following:

- Bennett, N., & Lemoine, G. J. (2014). What VUCA Really Means for You. *Harvard Business Review*, 92(1/2), 27.

